

SUPPLEMENTAL DISCLOSURE BUNDLE

Items 20.1 to 20.3

PEER REVIEW MEMORANDUM, COVERT RECORDING TRANSCRIPT,
AND DISPUTED PRIVILEGED NOTE

Warning to the reader	Item 20.3 is asserted by Meridian Structures Limited to be subject to legal professional privilege and to have been disclosed inadvertently. An application under CPR 31.20 for an injunction restraining its use is listed for hearing on 14 November 2025. It is reproduced here because it is in the bundle before the court on that application.
Item 20.1	Peer review memorandum of Professor Marisol Danecourt, 19 May 2025
Item 20.2	Transcript of covert audio recording made by Mr D. Aksoy, 4 March 2024 (exhibit DA/3)
Item 20.3	Attendance note, Halloway Brant LLP, 15 November 2023 (disputed)

ITEM 20.1 — PEER REVIEW MEMORANDUM

Author	Professor Marisol DANECOURT MA(Cantab) PhD CEng FICE FREng, Emeritus Professor of Structural Engineering, University of Sheffield
Instructed by	Halloway Brant LLP for Meridian Structures Limited
Scope	To review the report of Dr E. Vantrease dated 8 August 2024 and to express an independent opinion on causation. Permission granted 16 April 2025.

1. I agree with Dr Vantrease that three through-ties were absent at grid positions E4, E5 and E6. That much is established by the HSE survey and is not, in my view, seriously arguable.
2. I do not agree that the absence of those ties was 'the primary cause' in the sense in which Dr Vantrease uses that phrase, and I regard his conclusion at 1.3 that wind 'was not a cause' as unsustainable.
3. Dr Vantrease's analysis at his section 4 models the bay as a static system under a vertical eccentric load. That is a legitimate first-order approach but it omits the dynamic component. A crane-landed load of 1,218 kg with a sail area of 4.32 m² in a gusting crosswind at 21.4 m does not arrive as a static load. The horizontal and torsional components are significant and, on my analysis, govern.
4. Applying a dynamic amplification factor consistent with BS EN 1991-1-4 and with the observed slew arc, I obtain a peak demand at the tie positions between 2.1 and 2.9 times the static figure used by Dr Vantrease. On my model a fully tied bay loaded to 1,410 kg would have been at or beyond its ultimate capacity in a 43 mph gust. On his model it would have had a margin of over 2.0. That is not a small difference of professional judgement; it is a different analysis.
5. The practical consequence matters. If I am right, the decision to resume lifting at 11:13 in the conditions then prevailing was itself capable of causing the collapse of a compliant bay. If Dr Vantrease is right, the resumption was merely the occasion of the failure of a non-compliant one. The two accounts attribute responsibility to different decisions taken by different people at different times.
6. I therefore express my opinion as follows. The collapse was the result of the coincidence of three conditions, none of which was individually sufficient: the absence of ties, the overload, and the wind. Remove any one and, on my analysis, the bay probably survives that morning. I am not able to rank them.
7. I must record two matters that do not assist the party instructing me. First, Dr Vantrease's conclusion at 1.4, that no competent engineer could certify 2,000 kg for this configuration, is in my view plainly correct and I would go further: the figure is not merely wrong but is not the product of any calculation I can reconstruct. Second, his conclusion at 1.6 as to the temporary works control system is a matter on which I agree with him. The concentration of the three roles in one person is indefensible.
8. I disagree with his paragraph 1.7. Whether an individual was grossly negligent is not a question of structural engineering and I decline to express a view on it. I note that Dr Vantrease has done so.
9. I record that I have been asked by those instructing me to consider whether the collapse would have occurred if the bay had been loaded to 750 kg with the ties absent. My answer is that it probably would have, though possibly not on 14 November. I have been asked whether that answer might be expressed differently. It may not.

Signed:

Name / role:

Date:

M. Danecourt

M. Danecourt — Emeritus Professor of Structural Engineering

19 May 2025

ITEM 20.2 — TRANSCRIPT OF COVERT AUDIO RECORDING (exhibit DA/3)

Recording made by	Mr Deniz Aksoy, on his personal mobile telephone, concealed in a jacket pocket
Date and place	4 March 2024, Meridian Structures Limited head office, Thorpe Park, Leeds
Present	Mr D. Aksoy; Mr A. Ferris; Ms B. Hargreave-Siddiqui (Head of HR)
Duration	00:04:11
Transcribed by	Rushbrook & Halligan Solicitors, 12 March 2024. Not an independent transcription service. Mr Aksoy disputes the transcription at 02:40 (see D03 para. 15).
Audio quality	Poor. Substantial background noise. The independent audio examiner instructed by Meridian, Ms F. Okoro-Whitfield, states that 'a significant proportion of the recording is at or below the threshold of reliable intelligibility and that different listeners may reasonably hear different words.'

00:00:04	HARGREAVE-SIDDIQUI	— so we're here about the sick pay position, that's all, this isn't a formal —
00:00:11	AKSOY	I've had nothing since January.
00:00:14	HARGREAVE-SIDDIQUI	You weren't our employee, Deniz. You were TowerLine's. That's the difficulty.
00:00:22	AKSOY	I was on your site. Your permit. Your crane.
00:00:29	FERRIS	[inaudible — approx. 4 seconds]
00:00:35	FERRIS	— sympathy for you. Genuinely. But the legal position is the legal position.
00:01:02	AKSOY	Gareth told them the ties were out. Everybody knows that.
00:01:08	FERRIS	Gareth Pyle has said two completely different things under oath and he's taken money from Coldbrook to say the second one. I wouldn't build much on Gareth.
00:01:19	AKSOY	How do you know he's taken money?
00:01:21	FERRIS	[pause — 3 seconds] It's in the papers. The disclosure.
00:01:26	AKSOY	The disclosure came out in May.
00:01:29	FERRIS	[inaudible]
00:02:11	AKSOY	Was the certificate real?
00:02:14	HARGREAVE-SIDDIQUI	Deniz, I don't think we should —
00:02:16	FERRIS	No, it's fine. [to Aksoy] What do you want me to say to you?
00:02:21	AKSOY	I want to know if the certificate was real.
00:02:40	FERRIS	[DISPUTED PASSAGE] Transcription as served: “I didn't know it wasn't real until after. Ruaridh did that on his own and I've been carrying it ever since.” Mr Aksoy's own account of what he hears: “I didn't know if it was real until after. Ruaridh did that on his own and I've been carrying it ever since.” Meridian's audio examiner: “the words between 02:40.2 and 02:41.1 are not reliably resolvable; both 'it wasn't' and 'if it was' are consistent with the waveform; a third possibility, 'it was', cannot be excluded.”
00:02:52	HARGREAVE-SIDDIQUI	Aldwyn.
00:02:53	FERRIS	[inaudible — approx. 6 seconds]
00:03:04	FERRIS	— and none of this conversation happened, do you understand me? Not to a lawyer, not to the inspector, not to anyone.
00:03:12	AKSOY	Or what?
00:03:14	FERRIS	There's no 'or what'. I'm asking you.
00:03:30	HARGREAVE-SIDDIQUI	I think we should end the meeting. Deniz, we'll write to you about the sick pay.
00:03:41	AKSOY	A man died.
00:03:44	FERRIS	I know a man died. [inaudible] every day.
00:04:07	—	[recording ends]

Objections taken to item 20.2

- Meridian applies to exclude the recording in the criminal proceedings under s.78 PACE 1984 and, in the civil proceedings, under CPR 32.1(2), on the grounds that it was obtained covertly, in breach of Article 8, and without the knowledge of any

participant.

- Meridian further contends that the meeting was a without prejudice discussion of Mr Aksoy's claim and that the recording is inadmissible on that ground. Mr Aksoy contends the meeting concerned statutory sick pay, that no proceedings were then in contemplation between him and Meridian (he was not their employee), and that in any event the 'unambiguous impropriety' exception applies to the passage at 03:04.
- Mr Aksoy contends the recording is admissible: covert recordings by a private individual are not excluded merely because they were covertly made, and the passages at 01:08, 02:40 and 03:04 go directly to the credibility and knowledge of Mr Ferris.
- The passage at 01:08 to 01:29 is relied on by the Crown as showing knowledge of the Coldbrook payments to Mr Pyle before those payments were disclosed. Mr Ferris says he was told of them by his solicitor. If so, questions arise as to how his solicitor knew.

ITEM 20.3 — DISPUTED ATTENDANCE NOTE

ASSERTED TO BE PRIVILEGED. DISCLOSED 2 APRIL 2024. RETURN DEMANDED 11 APRIL 2024. CPR 31.20 APPLICATION LISTED 14 NOVEMBER 2025.

Firm	Halloway Brant LLP
Fee earner	O. Trelawney-Baptiste, partner
Matter	Meridian Structures Limited — Brackenmoor Wharf — 41188/7
Attendance	Telephone, Mr A. Ferris, 15 November 2023, 20:40-21:12
Note prepared	15 November 2023, 21:20

“AF telephoned me at home. He was agitated.

He told me that the LB-7 certificate does not exist and never did; that RDH produced it on the Monday evening using a Halbrook template; and that he, AF, was aware of this by Tuesday afternoon at the latest, i.e. after the collapse but before the HSE attended for the second time.

He asked me two questions. First, whether the document could now be ‘made good’ by getting Ashgrove-Pike to sign it, on the footing that Ashgrove-Pike had done the calculation anyway. Second, whether it could simply be left out of the s.20 response.

I advised him in the strongest terms that neither course was open to him, that the second was itself an offence, and that the first was capable of amounting to fraud and to perverting the course of justice. I told him I could not advise on how either might be done and that if he pursued either course I would have to consider my position, including under the SRA Codes and the money laundering provisions.

He then said words to the effect: ‘Then I need you to tell me what the position is if the certificate goes to the HSE and nobody says anything about when it was made.’ I said that would be a misleading response to a statutory notice.

He said he would think about it. I said I would confirm my advice in writing tonight and that I required his confirmation of receipt. I sent that email at 21:16.

Note to file: *I am concerned. If the certificate is produced without qualification I may be unable to continue to act. I will raise with the COLP in the morning. I have not been instructed to do anything and I have done nothing.”*

The positions on privilege

- **Meridian:** the note is a lawyer’s record of a communication with the client for the dominant purpose of giving legal advice. It is squarely legal advice privilege. It was disclosed by mistake in a bulk production of 1,417 documents. The mistake was obvious and was notified within nine days. The court should restrain its use: CPR 31.20; *Al Fayed v Commissioner of Police of the Metropolis*.
- **The CPS and Coldbrook:** (i) the iniquity exception applies. Privilege does not attach to communications made in furtherance of a crime or fraud, whether or not the solicitor is party to the iniquity: *R v Cox and Railton*; *Barclays Bank plc v Eustice*; *JSC BTA Bank v Ablyazov*. The client was seeking advice on how to present a forged document to a regulator. (ii) In any event the mistake was not obvious: the note was produced by Meridian’s own solicitors and Meridian has never explained its disclosure protocol. (iii) The note is relied on only as to the fact of Mr Ferris’s knowledge, which is independently provable.
- **Meridian in reply:** the iniquity exception requires a strong prima facie case of iniquity, which cannot be established by the very document sought to be deployed without circularity; and the solicitor did not advise the iniquity, she refused to. A client who asks whether something is lawful and is told it is not is doing the opposite of using the lawyer as a tool of crime.
- **A further point taken by the CPS:** the attendance note and the email at D10 item 10.6 are the same communication in substance. If privilege in one is lost or waived, it is difficult to see how it survives in the other. Meridian has not sought the return of item 10.6, which HSE has sequestered rather than returned.